The examination is being carried out on the **following application documents**

Description, Pages

1-28 filed with entry into the regional phase before the EPO

Claims, Numbers

1-12 filed with entry into the regional phase before the EPO

Drawings, Sheets

1/12-12/12 filed with entry into the regional phase before the EPO

Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 Santa Cruz: "SSB-2 (32-K): sc-100863",
, 16 July 2012 (2012-07-16), pages 1-1, XP093259509,
Retrieved from the Internet:
URL:https://datasheets.scbt.com/sc-100863.pdf

D2 US 2013/196876 A1 (HABERMANN JENS [DE] ET AL) 1 August 2013 (2013-08-01)

D3 ZENG CHENJIE ET AL: "Identification of Susceptibility Loci and Genes for Colorectal Cancer Risk",
GASTROENTEROLOGY,
vol. 150, no. 7, 1 June 2017 (2017-06-01), pages 1633-1645, XP029621829,
ISSN: 0016-5085, DOI: 10.1053/J.GASTRO.2016.02.076

D4 PING JIE ET AL: "Differences in gene-expression profiles in breast cancer between African and European-ancestry women",
CARCINOGENESIS,
vol. 41, no. 7, 8 April 2020 (2020-04-08), pages 887-893, XP093259314, GB
ISSN: 0143-3334, DOI: 10.1093/carcin/bgaa035

Retrieved from the Internet:
URL:http://academic.oup.com/carcin/article-pdf/41/7/887/33494510/bgaa035.pdf

1. Art 54/56 EPC

Starting remarks:

Claims 7-10 pertain to entities, namely kits. These are defined by the technical features forming the kits, and any document disclosing technical features rendering these suitable for the claimed use anticipate the subject matter of the claimed kits.

The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of claims 1-12 is not new within the meaning of Article 54(1) and (2) EPC.

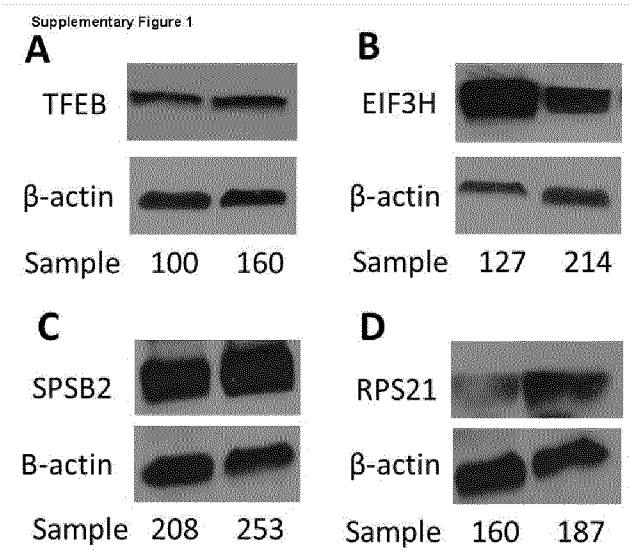
D1(whole document) discloses a kit comprising anti-human SPSB2-antibodies suitable for detecting SPSB2 in pancreatic cancer samples.

D1 thus anticipates the subject matter of claims 7-10.

D2 (par [0030]-[0034]) discloses that SPSB2 as well as autoantibodies to SPSB2 were found as differentially expressed between pancreatic carcinoma patients and controls, causally linking the expression to the disease using proto-arrays which comprise binding substances for SPSB2. D2 discloses staging, treatment and prognosis.

D2 thus anticipates the subject matter of claims 1-12.

D3 (suppl info #2 (see picture; retrievable under https://pmc.ncbi.nlm.nih.gov/articles/PMC4909543/#S15); whole document) discloses kits comprising anti-SPSB2-antibodies, as well as probes suitable for detecting SNPs in colorectal carcinoma patients.



D3 thus anticipates the subject matter of claims 1, 3, 5 and 7-10.

D4 ("Gene expression profiling and data processing SCCS data"; tab 2) discloses methods involving gene expression analyses in breast cancer samples werein RNA-Seq of total RNA isolated from formalin-fixed paraffin-embedded (FFPE) breast cancer tissues is investigated and wherein SPSB2 is significantly differentially expressed in said samples.

D4 thus anticipates the subject matter of claims 1 and 11.

The subject-matter of claims 1-12 is therefore not new (Article 54(1) and (2) EPC), nor is it inventive (Art 56 EPC).

3. Conclusions

The applicant is requested to file new claims which take account of the above comments.